

ELIZABETH II



Education (Scotland) Act 1976

1976 CHAPTER 20

An Act to make further provision with respect to school commencement and leaving dates and the supply of milk in schools; to provide for the remuneration of members of Independent Schools Tribunals; to make provision with respect to the construction of educational endowment schemes; to make minor amendments to the Education (Scotland) Act 1962 and the Education (Scotland) Act 1969; and for connected purposes. [10th June 1976]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The following section shall be substituted for section 33 of the Education (Scotland) Act 1962:—

“Dates for commencement of school attendance.

33.—(1) Subject to subsection (7) below, an education authority shall fix a date or dates (any such fixed date being hereinafter referred to as a “school commencement date”) for the commencement of attendance at primary schools in their area; and any such date may be either a calendar date or fixed by reference to the occurrence of a particular annual event.

Commencement of school attendance. 1962 c. 47.

(2) Subject to subsection (7) below, an education authority may, under subsection (1) above—

(a) fix different school commencement dates for different primary schools in their area;

- (b) at any time fix a different school commencement date in substitution for any date previously fixed by them under the said subsection (1).

(3) A child who does not attain the age of five years on a school commencement date shall, for the purposes of section 32 of this Act, be deemed not to have attained that age until the school commencement date next following the fifth anniversary of his birth.

(4) Subject to subsection (7) below, an education authority shall, in respect of each school commencement date fixed by them under subsection (1) above and applicable to a public primary school, fix the latest following date (any such fixed date being hereinafter referred to as an "appropriate latest date") on or before which a child must attain the age of five years in order to come within the category of children whom the authority consider of sufficient age to commence attendance at a public primary school at that school commencement date.

(5) Subject to subsection (7) below, an education authority may, under subsection (4) above—

- (a) where a school commencement date is applicable to more than one public primary school in their area, fix in respect of that school commencement date different appropriate latest dates for those different schools ;

- (b) at any time fix a different appropriate latest date in substitution for any date previously fixed by them under the said subsection (4).

(6) The education authority shall carry out their duty under section 1 of this Act as if a child who is under school age on a school commencement date, but who will attain the age of five years on or before the next following appropriate latest date fixed in respect of the school commencement date, has attained the age of five years on the school commencement date ; but nothing in this subsection or in subsection (4) above shall, in respect of a child under school age,—

- (a) impose any duty on his parent ; or
- (b) require an education authority to take any action under section 36 or 37 of this Act.

(7) The period between an appropriate latest date applicable to a school and the next following school commencement date applicable to that school (whether or not the school commencement date is that in respect of which the appropriate latest date is fixed) shall not, except with the approval of the Secretary of State on an application to him by the education authority, exceed six months by more than seven days:

Provided that no such application shall be made, nor approval given, in respect of any such period which commences after 31st December 1979.

(8) In relation to any child, "school commencement date"—

(a) in subsection (3) above—

(i) means, where the child is a pupil in attendance at a primary school, a school commencement date of that school;

(ii) in any other case has the same meaning as in subsection (6) above;

(b) in subsection (6) above means a school commencement date of the public primary school to which a child of his religious denomination and from his place of residence would normally be admitted.

(9) In this section, "primary school" does not include a nursery school or a nursery class."

2. The following section shall be inserted after section 33 of the Education (Scotland) Act 1962:—

"School leaving dates.

33A.—(1) The last day of May (hereinafter referred to as the "summer leaving date") and the appropriate day in December (hereinafter referred to as the "winter leaving date") shall be the school leaving dates in each year.

School leaving dates.

1962 c. 47.

(2) Subject to subsection (4) below, for the purposes of section 32 of this Act a person shall, if the date of his attaining the age of sixteen years is—

(a) on or after 1st March but before the next summer leaving date, be deemed not to have attained that age until the summer leaving date;

- (b) after the summer leaving date but before 1st October next following that date, be deemed to have attained that age on the summer leaving date ;
- (c) on or after 1st October but before the next winter leaving date, be deemed not to have attained that age until the winter leaving date ;
- (d) after the winter leaving date but before 1st March next following that date, be deemed to have attained that age on the winter leaving date.

(3) In subsection (1) above, " the appropriate day in December " means—

(a) in the case of a person who is a pupil in attendance at a school, the first day of the Christmas holiday period ;

(b) in any other case, 21st December, and in paragraph (a) of this subsection, " Christmas holiday period " means a period of consecutive days which includes 25th December and in which the school does not meet for the purpose of providing school education.

(4) A person who attains the age of sixteen years—

(a) before the date of commencement of section 2 of the Education (Scotland) Act 1976 and who has not ceased to be of school age before that date ; or

(b) on or after the said date but before 1st October or 1st March (whichever is the earlier) next following such commencement, shall be deemed not to be over school age until such date (being the said commencement date or a date thereafter) as the Secretary of State may by order made by statutory instrument prescribe ; and different dates may be prescribed for different categories of such persons."

School milk.
1971 c. 74.

3. In section 2(2) of the Education (Milk) Act 1971 (which makes provision for enabling education authorities to provide milk but for the expense to be defrayed by the pupils or their parents) the words from " but " onwards are hereby repealed.

Remuneration
of members of
Independent
Schools
Tribunals.

4. The Secretary of State may, out of monies provided by Parliament, pay to the members of Independent Schools Tribunals such remuneration and allowances as he may, with the consent of the Minister for the Civil Service, determine.

5. After the date of commencement of this section any reference in a scheme made or approved under Part VI of the Education (Scotland) Act 1946 or under Part VI of the Education (Scotland) Act 1962 (reorganisation of educational endowments)—

Construction of educational endowment schemes.

1946 c. 72.

1962 c. 47.

(a) to a certificated teacher shall be construed as a reference to a teacher registered under the Teaching Council (Scotland) Act 1965 ;

1965 c. 19.

(b) to a children's committee shall be construed as a reference to a social work committee established under section 2(1) of the Social Work (Scotland) Act 1968 ;

1968 c. 49.

(c) to the Scottish Counties of Cities Association or to the Association of County Councils in Scotland shall be construed as a reference to the Convention of Scottish Local Authorities.

6.—(1) The enactments specified in Schedule 1 to this Act shall have effect subject to the amendments specified in that Schedule (being minor amendments or amendments consequential on the preceding provisions of this Act).

Amendments and repeals.

(2) The enactments specified in Schedule 2 to this Act are hereby repealed to the extent shown in column 3 of that Schedule.

7.—(1) This Act may be cited as the Education (Scotland) Act 1976, and this Act and the Education (Scotland) Acts 1939 to 1974 may be cited together as the Education (Scotland) Acts 1939 to 1976.

Citation, commencement, construction and extent.

(2) This Act (except this section) shall come into force on such date as the Secretary of State may by order made by statutory instrument appoint and different dates may be appointed for, or for different purposes of, different provisions.

(3) Any reference in this Act or in any other Act to the commencement of any provision of this Act shall be construed as a reference to the day when that provision comes into force.

(4) Any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by or under any other enactment, including this Act.

(5) This Act shall extend to Scotland only.

SCHEDULES

SCHEDULE 1

Section 6(1).

MINOR AND CONSEQUENTIAL AMENDMENTS

The Children Act 1958 (c. 65)

1. In section 17, (interpretation) in the definition of "compulsory school age", for the words "Acts, 1939 to 1956" there shall be substituted the words "Act 1962".

The Mental Health (Scotland) Act 1960 (c. 61)

2. In section 12(1)(b), (training of mental defectives) for the words "the age of sixteen" there shall be substituted the words "school age within the meaning of the Education (Scotland) Act 1962".

The Factories Act 1961 (c. 34)

3. In section 176(1), (interpretation) in the definition of "child", for the word "1946" there shall be substituted the word "1962".

The Education (Scotland) Act 1962 (c. 47)

4. In section 6, (social activities, physical education etc.)—

(a) for paragraph (a) of subsection (1) there shall be substituted the following paragraph—

"(a) establish, maintain and manage—

(i) camps, outdoor centres, playing fields, and swimming pools ;

(ii) play areas and centres ;

(iii) sports halls, centres and clubs ;

(iv) youth, community and cultural centres and clubs,

and other places at which any such facilities as aforesaid are available." ;

(b) for paragraphs (a) and (b) of subsection (2) there shall be substituted the following words—

"(a) may assist any body whose objects include ;

(b) shall, so far as practicable, co-operate with local authorities and with voluntary societies or bodies whose objects include,

the provision or promotion of social, cultural and recreative activities and physical education and training or the facilities for such activities, education and training."

5. In section 13, (provision of hostels) for the words from "day" to the end there shall be substituted the words "educational establishments in their area."

6. For section 32, (school age) there shall be substituted the following section—

" School
Age.

32. Subject to sections 33(3) and 33A(2) and (4) of this Act, a person is of school age if he has attained the age of five years and has not attained the age of sixteen years."

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7. In section 42, (reasonable excuses)—

- (a) in subsection (1)(a)(i), after the word "fifty" there shall be inserted the words "or fifty-one";
- (b) in subsection (3), for the words "of the education authority" there shall be substituted the words "of the appropriate Health Board";
- (c) in subsection (4), at the end there shall be added the words "; and "the appropriate Health Board" in relation to any child, means—
 - (a) where an attendance order is in force in respect of the child, the Health Board in whose area the school named in the order is situated;
 - (b) in any other case, the Health Board in whose area the place of residence of the child is situated."

8. In section 58, (medical inspection, supervision and treatment of pupils and young persons)—

- (a) in subsection (2) after the words "made by the" there shall be inserted the word "appropriate";
- (b) at the end there shall be added the following subsection—

"(3) In this section, "the appropriate Health Board", in relation to any pupil or young person, means the Health Board in whose area is situated the school, junior college or other educational establishment at which the pupil or young person is in attendance."

9. In section 58A, (dental inspection and supervision of pupils and young persons)—

- (a) in subsection (2), after the words "made by the" there shall be inserted the word "appropriate";
- (b) at the end there shall be added the following subsection—

"(4) In this section "the appropriate Health Board" has the same meaning as in section 58 of this Act."

10. In section 61, (power to ensure cleanliness)—

- (a) in subsection (1), for the words "Health Board for the area" there shall be substituted the words "appropriate Health Board";
- (b) at the end there shall be added the following subsection—

"(8) In this section "the appropriate Health Board" has the same meaning as in section 58 of this Act."

11. In section 81 (power of Secretary of State to make regulations with respect to certain institutions providing further education)—

- (a) in subsection (1) after paragraph (v) there shall be added the following paragraph—

"(vi) provide that the governing body of such a college shall comply with any direction given by the Secretary of State, after consultation with them, as to the

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discontinuance of any course of instruction provided in the college or the number of students of different categories to be admitted to the college in any period.”;

- (b) in subsection (2), for the words from “provision with” to “(v), of” there shall be substituted the words “such provision and prescribe such matters with respect to such institutions as may be provided or prescribed with respect to grant-aided colleges in regulations made under”;
- (c) at the end of subsection (2) there shall be added the following words “; and regulations under this subsection may make different provision in relation to different classes of institution or different institutions.”;
- (d) at the end of subsection (3) there shall be added the following words “and such regulations may provide—
 - (a) for the transfer of the staff of such a college to, and
 - (b) that the property, rights, liabilities and obligations of the college shall be transferred to and vest in,such institution established by regulations under subsection (2) above or grant-aided college as may be specified in the regulations on such conditions as to the use and disposal of the property so transferred as may be so specified:

Provided that any property transferred by virtue of such regulations shall remain subject to any trust or condition (whether contained in a scheme made or approved under Part VI of this Act or otherwise) to which it was subject immediately before such transfer.”;
- (e) in subsection (4) after the words “subsection (1)” there shall be inserted the words “or (3)”.

12. In section 124(1), (accounts and audit of educational endowments) for the words “the provisions of subsection (2) of section one hundred and ninety-six of the Local Government (Scotland) Act 1947, apply” there shall be substituted the words “section 106(1) of the Local Government (Scotland) Act 1973 applies”.

13. In section 145, (interpretation)—

- (a) in subsection (17)(iii), for the words “apply in writing to” there shall be substituted the words “have obtained the consent of” and for the words “for the club or centre to be” there shall be substituted the words “to the club or centre being”;
- (b) after subsection (22) there shall be inserted the following subsection—

“(22A) “Health Board” means a Health Board constituted under section 13 of the National Health Service (Scotland) Act 1972.”;

(c) for subsection (43) there shall be substituted the following subsection— SCH. 1

“(43) “School age” shall be construed in accordance with section 32 of this Act.”.

The Social Work (Scotland) Act 1968 (c. 49)

14. In section 94(1), (interpretation) for the definition of “school age” there shall be substituted—

““school age” shall be construed in accordance with section 32 of the Education (Scotland) Act 1962.”.

The Education (Scotland) Act 1969 (c. 49)

15. In section 16(3), (age of retirement of teachers) for the words “as references to a post which attracts a responsibility allowance in terms of” there shall be substituted the words “in accordance with”.

SCHEDULE 2

Section 6(2).

REPEALS

Chapter	Short Title	Extent of Repeal
10 & 11 Eliz II c. 47.	The Education (Scotland) Act 1962.	In section 1(2)(a)(i) the words “ , for the purpose of school attendance,”. Section 72. In section 116(1), the words from “and as to the pay- ment” to the end.
1969 c. 49.	The Education (Scotland) Act 1969.	Section 8. In Part I of Schedule 2, para- graph 16.
1971 c. 74.	The Education (Milk) Act 1971.	In section 2(3), the words “ Subject to subsection (2) above”. Section 3(2).